IN THE NATIONAL COMPANY LAW TRIBUNAL,
ALLAHABAD BENCH, PRAYAGRAJ
(through web-based video conferencing platform)

CP(CAA)No.13/ALD/2022
(2nd Motion)
Under Section 230-232 and Section
of the Companies Act, 2013

In the matter of Scheme of Arrangement between:

Agarwal Fin-Lease and Investment Private Limited,
(CIN: U65910UP2002PTC026637)
…… Transferor Company No.1

Chinhat Land And Finance Private Limited
(CIN: U65993UP1992PTC014631)
……Transferor Company No.2

Enembee Engineers Private Limited,
(CIN: U27109UP1993PTC083265)
……. Transferor Company No.3

Uma Sales Private Limited
(CIN: U34101UP1988PTC010189)
……. Transferor Company No.4

Vinamra Fin-Lease And Investment Private Limited,
(CIN: U65910UP2002PTC026638)
……Transferor Company No.5

Vibhu Enterprises Private Limited
(CIN: U65993UP1992PTC014587)
…...Transferor Company No.6 / Demerged Company

AND

Technical Associates Limited
(CIN: U70100UP1988PLC007884)
…. Transferee Company / Resulting Company

Order delivered on: 02.08.2022

Coram: **HON'BLE MR. HARNAM SINGH THAKUR, MEMBER (JUDICIAL)**
HON'BLE MR. SUBRATA KUMAR DASH, MEMBER (TECHNICAL)

—Sd—

Present through video conferencing:

For the Petitioner Companies : Sh. Shashi Kant Gupta, PCS
For ROC :Sh. Shivendra Bahadur, Adv
For RD/ OL : Sh. Kuldeep Singh, AOL

Per: Harnam Singh Thakur, Member (Judicial)

ORDER

1. This is a joint Second Motion company petition filed by the Petitioner-Companies, namely, Agarwal Fin-Lease and Investment Private Limited ('Transferor Company No. 1), Chinhat Land and Finance Private Limited ('Transferor Company No. 2), Enembee Engineers Private Limited ('Transferor Company No. 3), Uma Sales Private Limited ('Transferor Company No. 4), Vinamra Fin-Lease and Investment Private Limited ('Transferor Company No. 5), Vibhu Enterprises Private Limited ('Transferor Company No. 6' / 'Demerged Company') and Technical Associates Limited ('Transferee Company'/ 'Resulting Company') in terms of Rule 16 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for Brevity "Rules).

2. The petitioner companies have prayed for sanctioning of the Scheme of Arrangement in the petition and notices to be issued to the authorities concerned in relation to the date of hearing of the petition and calling for objections.

3. The First Motion application seeking directions for Dispensing/Convening with the meetings of the Equity Shareholders and Secured and Unsecured Creditors of all the Applicant Companies was

—Sd—

filed before this Tribunal vide Company Application No. CA (CAA) No.06/ALD/2022 and based on such application moved under Sections 230-232 of the Companies Act, 2013, (for brevity, the 'Act') necessary directions were issued on 23.05.2022. In the order dated 23.05.2022, the meetings of equity shareholders, Secured Creditors and Unsecured Creditors of Transferor Companies Nos. 1,2,3,4,5& 6 and the meetings of equity shareholders of Transferee Company were dispensed with for the reasons mentioned in the aforesaid order. The meetings of secured creditors and unsecured Creditors of Transferee company/ Resulting Company were to be convened on 09.07.2022.

4. The main objects, date of incorporation, authorized and paid-up share capital, and the rationale of the Scheme have been discussed in detail in the order dated 23.05.2022.

5. In compliance with the directions issued by this Tribunal, the meetings of Secured Creditors and Unsecured Creditors of the Transferee Company were held on 09.07.2022 for which Chairperson and the Scrutinizer were appointed and they have filed their reports accordingly. The details are given underneath: -

Sr. No.	Meeting of	Chairperson / Scrutinizer	Chairperson's Report		Date of Meeting
			Date of filing	Date of Report	
1.	Secured Creditors of Transferee Company	Mr. Abhinav Mehrotra, Advocate, Chairperson	Diary No. 090210900303202 2/3 Dated 23.07.2022	23.07.2022	09.07.2022

—Sd—

2.	Unsecured Creditors of Transferee Company	Mr. Ankit Kumar Singh, PCS, Scrutinizer	Diary No. 090210900303202 2/3 Dated 23.07.2022	23.07.2022	09.07.2022

As per Chairperson's Reports dated 23.07.2022, the proposed scheme has been approved by 100% of the total votes (In terms of value) in case of Secured Creditors and Unsecured Creditors of Transferee Company.

6. The notice of hearing will be advertised in "Economic Times" in English language, and "Aaj" in Hindi language, having wide circulation at Lucknow by not less than 10 days before the next date fixed for hearing.

7. In addition to the above public notice, the Petitioner Companies shall serve the notice of the petition within two weeks on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs; New Delhi; (b) Registrar of Companies, Kanpur, Uttar Pradesh; (c) Official Liquidator; Allahabad, Uttar Pradesh; (d) Jurisdictional Income Tax Authority by mentioning the PAN of the Company along with copy of this petition by speed post immediately.

8. The petitioner companies shall at least 7 days before the date of hearing of the petition file an affidavit regarding newspaper publication with newspaper clippings as well as service of notices on the authorities specified above. Objections, if any, to the 'Scheme' contemplated by the authorities to whom notice has been given may be filed on or before the

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date of hearing fixed herein, failing which it will be considered that there is no objection to the approval of the 'Scheme' on the part of the authorities and this Tribunal will proceed in the matter, subject to other conditions being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder. The petitioner companies shall also file an affidavit stating the objections received from public pursuant to publication of notice of hearing in the newspapers.

9. The next date of hearing of the petition shall be on **11.10.2022** for the consideration of the approval of the scheme as contemplated between the petitioner companies.

10. The registry shall also report before the date fixed as to whether any objection has been received to the proposed 'Scheme'.

—Sd—

(Subrata Kumar Dash)
Member (Technical)

—Sd—

(Harnam Singh Thakur)
Member (Judicial)

August 2, 2022

Swati Gupta(LRA)